



NEVADA DIVISION OF
**ENVIRONMENTAL
PROTECTION**

STATE OF NEVADA
Department of Conservation & Natural Resources
Joe Lombardo, Governor
James A. Settelmeyer, Director
Jennifer L. Carr, Administrator

September 30, 2024

Eric Pender
Q&D Construction
1050 S. 21st Street
Sparks, NV 89431

RE: Temporary Permit Working in Waterway – NVW- 54471 Yerington Culvert Replacement 4530

Dear Eric Pender,

Enclosed please find a copy of the approved temporary permit for the above-cited project. The permit will be in effect from **September 30, 2024**, through **March 29, 2025**. The permit authorizes the work in waters of the State as described in the application and engineering design plans received on **September 05, 2024**. Any significant changes would require a new permit.

The permit requires daily monitoring and monthly reporting via Discharge Monitoring Reports (DMRs); the first DMR is due **October 28, 2024**. The final DMR and narrative report including documentary photos are due by **April 28, 2025**, or by the 28th day of the month following project completion, whichever comes first.

Please contact me at mcowles@ndep.nv.gov or 775-687-9569 if you have any questions.

Sincerely,

Mitch Cowles, E.I.
Staff II, Associate Engineer
Bureau of Water Pollution Control

Enclosures:
Temporary Permit NVW-54471
Discharge Monitoring Report Form

Ecc:
Zachary Carter, BWQP (w/permit)
USACE, spkregulatorymailbox@usace.army.mil (w/permit)
Ben Kahue, TCE Branch Supervisor, BWPC
Kristie Black, Stormwater Branch Supervisor, BWPC
BWPC Front Desk Administrative Assistant (w/enclosures)

RECEIVED

OCT 02 2024

Q & D Construction

NEVADA DIVISION OF ENVIRONMENTAL PROTECTION
TEMPORARY DISCHARGE PERMIT
AUTHORIZATION TO WORK IN WATERS OF THE STATE

In compliance with the provisions from Chapter 445A of the Nevada Revised Statutes (NRS), the Permittee,

Q&D Construction
1050 S. 21st Street
Sparks, NV 89431

is authorized to operate heavy equipment (rolling stock) and to work in Waters of the State, in the unnamed ephemeral roadside ditch (waterbody), for the removal and replacement of two roadside culverts, located approximately at:

Latitude 38.861767°, Longitude -119.192074°
SR 339
Washoe County, Nevada

in receiving waters named:

Unnamed ephemeral roadside drainage

in accordance with effluent limitations, monitoring requirements, and other conditions set forth in Parts I and II hereof.

This permit shall become effective on 09/30/2024.

The first report due date is 10/28/2024.

This permit shall expire at midnight, 03/29/2025.

Signed this 30th day of September 2024



Mitch Cowles, E.I.
Staff II, Associate Engineer
Bureau of Water Pollution Control
Nevada Division of Environmental Protection

Part I

I.A. LIMITATIONS, MONITORING, AND SPECIFIC CONDITIONS

- I.A.1 **Introduction:** The Permittee, **Q&D Construction**, proposes to remove and replace two roadside ephemeral culverts near Yerington in Lyon County, Nevada. Q&D Construction will be using excavators, loaders, and worker trucks to remove and replace two existing roadside culverts. Additional earth-moving equipment will be utilized if necessary. Part of the project is permitted under a CSW, being CSW-54474.

Best Management Practices (BMPs) The project is permitted under the Construction Stormwater Permit and will be required to meet the permit requirements of the general permit. The site will utilize a SWPPP, in addition to installing silt fencing and straw wattles along the banks of the ephemeral streams. Vehicle inspections will occur daily for TPH visual inspections.

Additional BMPs may be placed as appropriate to minimize or exclude the potential for additional pollutant discharge on site. Also, additional BMPs may be implemented by the Permittee to ensure degradation of the project site is minimized or prevented. Additional **required** specific conditions can be found in **Section I.A.8** of this permit.

This permit only covers the logistics of the operations while working in the waterways in the context of prevention or control of pollution discharges to the waterbody. As such, the issuance of this permit shall not be construed as substitution or superseding any other regulations that govern the actual project details.

This permit does not authorize the Permittee to discharge water used for dust suppression or dust control to Waters of the State.

- I.A.2 **Work Activities Limits:** There shall be no other project activities undertaken in the waterbody except those as authorized by this permit. Discharge of any kind, either to the waterbody or to the ground, is not authorized by this permit.
- I.A.3 **Limitations:** During the period beginning on the effective date of this permit and lasting until the permit expires, the Permittee is authorized to work in waters of the State in the subject areas of the project. Water quality Best Management Practices (BMPs) shall be implemented to prevent water quality degradation and erosion as much as is practicable, in accordance with plans and information submitted to NDEP.
- I.A.4 If no activity occurs in or near the waterbody during a day, then no monitoring is required for that site on that day.
- I.A.5 Water quality shall be limited and monitored by the Permittee as specified below:

Table I.A.5 Water Quality Sampling and Monitoring Requirements

Effluent Parameters and Units		Discharge Limits	Monitoring Requirements		
			Location	Frequency	Sample Type
BMPs Visual Inspection		Pass/Fail	Site	Daily	Visual
Daily Vehicle Visual Inspection		Pass/Fail	Site	Daily	Visual
TPH ¹	mg/L	1.0	001	Event ¹	Discrete ²

1. Monitor in the event of a leak/visible sheen, or equipment leakage in or near the active project work areas, resulting in a spill in or near the waterway and report to NDEP.
2. "Discrete" sample means any individual sample collected in less than 15 minutes.

mg/L: milligrams per liter

TPH: Total Petroleum Hydrocarbons, full range C6-C40, purgeable and extractable

001: Outfall 001, approximate center of spill/leak plume.

I.A.6 Summary of Monitoring and Reporting Requirements: Project monitoring shall be conducted by means of a concise narrative final report (in accordance with paragraph I.A.7) describing the project and a series of photos documenting the project activities, including the implementation of BMPs. "Before, during and after" photos, shall document the installation and removal of BMPs, and all other project activities occurring within the waterbody. The photos shall be taken from established photo points. The photos, along with the narrative report of the project activities, will be submitted at the end of the project.

Record all water quality monitoring results in a water quality logbook. Maintain logbook onsite for the duration of the project. The logbook shall include monitoring results, time and date, pertinent notes on specific project activity. A copy of the logbook will accompany the final report.

I.A.7 Final Report: The final narrative report with photos describing and documenting the results of the project's activities shall be submitted after the expiration of the permit or the end of the project, whichever comes first. The final report shall be received, at the address given below, by the 28th day of the month following project completion or the month following the expiration of the permit, whichever occurs first.

**Nevada Division of Environmental Protection
Bureau of Water Pollution Control
901 S. Stewart Street, Suite 4001
Carson City, NV 89701**

I.A.8 Specific Conditions: For any project activity in the waterbody authorized by this permit, the operations shall be conducted in accordance with the plans and information submitted to the Division, and the following terms and conditions:

- a. Any heavy equipment to be used in the work area must be steam cleaned at least once before work in the water bodies commences.
- b. All equipment shall be inspected for leaks daily prior to use.
- c. All leaks shall be repaired immediately and documented in the logbook.
- d. All equipment fueling and storage of fuels shall be located off-site and at least 100 feet away from the waterbody edge.
- e. Equipment shall not be parked overnight within 100 feet of any waterbodies.
- f. Spill containment equipment shall be readily available for use as needed.
- g. A record shall be kept of each day's use of heavy equipment in the waterbody and adjacent project areas.
- h. Precautions must be taken to minimize damage to any aquatic habitat in the project area during operation of equipment on the project.
- i. Disturbed areas shall be restored as much as practicable in conformance with approved plans.
- j. Best Management Practices (BMPs) shall be applied and precautions shall be taken to prevent and control releases of debris, sediment, any transport of sediments, and to prevent and control turbidity in the waterbody during construction activities.
- k. Vehicle use in unpaved areas shall be conducted in such a way as to minimize soil disturbance. No work or stockpiling will be done with an approaching storm, during a precipitation event and BMP's will be in place prior to a storm event.
- l. Other BMPs may include but will not be limited to construction fences, track-out devices, vegetation protection, and other BMPs as consistent with applicable BMP manuals and handbooks. If at any time the current BMPs are not effective, consultation with the Division is required prior to work resuming.
- m. Care shall be taken when removing, protective fencing, and other BMPs from the waterbody work areas to remove the captured material safely and effectively.
- n. Odors: There shall be no objectionable odors generated in the conduct of this project.
- o. Presumption of Possession and Compliance: Copies of this permit and any subsequent modifications shall be maintained at the permitted project site at all times.
- p. The Permittee bears the responsibility to ensure that the requirements of this temporary permit are fully satisfied.

I.B. MONITORING AND REPORTING – Detailed Requirements

I.B.1 Monitoring

- a. **Representative Samples:** Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. Additional samples and measurements collected at the non-discharge monitoring locations shall also be representative of the media and conditions being evaluated/monitored.
- b. **Test Procedures:** Unless otherwise stated, analyses shall be conducted by a “certified laboratory” using an “approved method of testing”, as defined in NAC 445A.0564 and NAC 445A.0562, respectively.
- c. **Recording the Results:** For each measurement or sample taken pursuant to the requirements of this permit, the Permittee shall record the following information:
 - i. The exact place, date, and time of sampling or measurement;
 - ii. The dates the analyses were performed;
 - iii. The person(s) who performed the analyses;
 - iv. The analytical techniques or methods used; and
 - v. The results of all required analyses, including reporting limits.
- d. **Additional Monitoring by Permittee:** If the Permittee monitors any pollutant at the location(s) designated herein more frequently than required by this permit, using approved analytical methods as specified above, the results of such monitoring shall be included in any calculation and/or reported value required by this permit. Such increased frequency shall also be indicated in required reports.
- e. **Records Retention:** All records and information resulting from monitoring activities; the permit application; reporting required by this permit, including all records of analyses performed, calibration and maintenance of instrumentation, and recordings from continuous monitoring instrumentation shall be retained for a minimum of five (5) years or longer if required by the Administrator.
- f. **Reporting Limits:** Unless otherwise allowed by the Division, the approved method of testing selected for analyses shall have a reporting limit which is:
 - i. Half or less of the discharge limit; or, if there is no discharge limit,
 - ii. Half or less of the applicable water quality criteria; or, if there is no limit or criteria,
 - iii. The lowest reasonably obtainable limit using an approved test method.
- g. **Modification of Monitoring Frequency and Sample Type:** After considering monitoring data, discharge flow, discharge frequency, and receiving water conditions, the Division and/or Administrator may, for just cause, modify the monitoring frequency and/or sample type by issuing an order to the Permittee.

I.B.2 DMR Reporting: Analytical data and monitoring results shall be summarized and/or tabulated for presentation in standardized DMRs. Laboratory reports for quantitative analyses conducted by State of Nevada certified laboratories must accompany DMRs and other submittals.

DMRs shall be received by the 28th day of the month following the effective date of the permit and the 28th day of each month for the duration of the permit. If no discharge occurs during the reporting period, summarize the project status and report "no discharge" on the submitted DMR.

DMRs must be signed by the authorized representative that is responsible for the work covered by this permit. The first DMR submitted under this permit must include the written designation of the authorized representative elected to sign DMRs. The designated representative responsible for project operations must sign each subsequent DMR submitted to the Division. If the authorized representative changes, a new designation letter must be submitted.

- a. **Monthly Reporting:** Monitoring results for the discharge monitoring requirements required by this permit shall be summarized and tabulated for each month. The Permittee is considered in compliance if the reported results are less than the established permit limits.
- b. **Other Information:** Where the Permittee becomes aware of failure to submit any relevant facts in a permit application or has submitted incorrect information in a permit application or in any report to the Division, the Permittee shall promptly submit such facts or information.
- c. **Anticipated Noncompliance:** The Permittee shall give advance notice to the Division of any planned changes in the permitted activity which may result in noncompliance with permit requirements.
- d. **Submittal:** An original signed copy of these, and all other reports required herein, shall be submitted to the Division at the address given in I.A.7.

I.B.3 Signatory Certification Required on Application and Reporting Forms:

- a. All applications, reports, or information submitted to the Division shall be signed and certified by making the following certification:

"I certify under penalty of law, that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are

significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.”

- b. Each application must contain a certification by the person signing the application that the person is familiar with the information provided, that to the best of his or her knowledge and belief the information is complete and accurate and that he or she has the authority to sign and execute the application.

Part II

II.A. MANAGEMENT REQUIREMENTS

II.A.1 Adverse Impact-Duty to Mitigate: The Permittee shall take all reasonable steps to minimize releases to the environment resulting from noncompliance with any effluent limitations specified in this permit, including such accelerated or additional monitoring as necessary to determine the nature and impact of the noncomplying discharge. The Permittee shall carry out such measures, as reasonable, to prevent significant adverse impacts on human health or the environment.

II.A.2 Noncompliance, Unauthorized Discharge, Bypassing, and Upset:

The Permittee shall notify the Administrator by calling the NDEP Spill Hotline at 1-888-331-6337 within twenty-four (24) hours of any spill or release of discharge other than that which is authorized by the permit.

- a. A written report shall be submitted to the Division within five (5) days of spill, or unpermitted discharge detailing the entire incident including:
 - i. Time and date of discharge;
 - ii. Exact location and estimated amount of discharge;
 - iii. Flow path and any bodies of water which the discharge contacts;
 - iv. The specific cause of the discharge; and
 - v. The preventive and/or corrective actions taken.

The Permittee shall report all instances of noncompliance not reported under Part I.B.2.a. at the time monitoring reports (DMRs) are submitted. The reports shall contain the information listed in Part I.B.1.c.

II.B. RESPONSIBILITIES

II.B.1 Right of Entry and Inspection: The Permittee shall allow the Administrator and/or his authorized representatives, upon the presentation of credentials, to:

- a. Enter, at reasonable times, upon the Permittee's worksite or premises in which any records are required to be kept under the terms and conditions of this permit;
- b. Have access to and copy any records required to be kept under the terms and conditions of this permit;
- c. Inspect, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations required by this permit; and
- d. Perform any necessary sampling or monitoring to determine compliance with this permit at any location for any parameter.

II.B.2 Availability of Reports: Except for data determined to be confidential under NRS 445A.665, all reports prepared in accordance with the terms of this permit shall be available for public inspection at the office of the Administrator. As required by the Act, effluent data shall not be considered confidential. Knowingly making any false statement on any such report may result in the imposition of criminal penalties as provided for in NRS 445A.710.

II.B.3 Furnishing False Information and Tampering with Monitoring Devices: Any person who knowingly makes any false statement, representation, or certification in any application, record, report, plan, or other document filed or required to be maintained by the provisions of NRS 445A.300 to 445A.730, inclusive, or by any permit, rule, regulation, or order issued pursuant thereto or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required to be maintained under the provisions of NRS 445A.300 to 445A.730, inclusive or by any permit, rule, regulation, or order issued pursuant thereto is guilty of a gross misdemeanor and shall be punished by a fine of not more than \$10,000 or by imprisonment. This penalty is in addition to any other penalties, civil or criminal, provided pursuant to NRS 445A.300 to 445A.730, inclusive.

II.B.4 Penalty for Violation of Permit Conditions: NRS 445A.675 provides that any person who violates a permit condition is subject to administrative and judicial sanctions as outlined in NRS 445A.690 through 445A.705.

II.B.5 Permit Modification, Suspension, or Revocation: After notice and opportunity for a hearing, this permit may be modified, suspended, or revoked in whole or in part during its

term for cause including, but not limited to, the following:

- a. Violation of any terms or conditions of this permit; or,
- b. Obtaining this permit by misrepresentation or failure to disclose fully all relevant facts.

II.B.6 Liability: Nothing in this permit shall be construed to preclude the institution of any legal action or relieve the Permittee from any responsibilities, liabilities, or penalties established pursuant to any applicable Federal, State, or local laws, regulations, or ordinances.

II.B.7 Property Rights: The issuance of this permit does not convey any property rights, in either real or personal property, or any exclusive privileges, rights, or rights of access or easement; nor does it authorize any injury to private property, any invasion of personal rights, or any infringement of Federal, State, or local laws or regulations.

II.B.8 Severability: The provisions of this permit are severable, and if any provision of this permit or the application of any provisions of this permit to any circumstance is held invalid, the application of such provision to other circumstances and the remainder of this permit shall not be affected thereby.

II.B.9 Need to Halt or Reduce Activity Not a Defense: The need to halt or reduce permitted activities in order to maintain compliance with the conditions of this permit shall not be a defense for a Permittee in an enforcement action.

II.B.10 Duty to Provide Information: The Permittee shall furnish to the Administrator, within a reasonable time, any relevant information which the Administrator may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this permit, or to determine compliance with this permit. The Permittee shall also furnish to the Administrator, upon request, copies of records required to be kept by this permit.

PERMITTEE ADDRESS
(Include Facility Name/Location if different)

STATE OF NEVADA TEMPORARY GROUNDWATER DISCHARGE
DISCHARGE MONITORING REPORT (DMR)

Form Approved
OMB No. 2000-0015

Pg. 1 of _

NAME: Yerington Culvert Replacement NDOT
4530

ADDRESS:

FACILITY:

LOCATION:

NVW-54471	NA
PERMIT NUMBER	REUSE SUPPLIER PERMIT NUMBER

NOTE: Read instructions before completing this form.

OUTFALL:

MONITORING PERIOD							REPORTING QUARTER	
YEAR	MONTH	DAY	To	YEAR	MONTH	DAY	QUARTER	YEAR

FROM

PARAMETER		QUANTITY OR LOADING			QUALITY OR CONCENTRATION				No. of Exceptions	Frequency of Analysis	Sample Type
		30-DAY AVERAGE	MAXIMUM	Units	MINIMUM	AVERAGE	MAXIMUM	Units			
	Sample Measurement										
	Permit Requirement										
	Sample Measurement										
	Permit Requirement										
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	Permit Requirement										

Name/Title Principal Executive Officer
(Typed or Printed)

TELEPHONE NO.:

I certify under penalty of law that I have personally examined and am familiar with the information submitted herein; and based on my inquiry of those individuals immediately responsible for obtaining the information, I believe the submitted information is true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment. See 18 U.S.C. §1001 and 33 U.S.C. §1319. (Penalties under these statutes may include fines up to \$10,000 and/or maximum imprisonment of between 6 months and 5 years.)

Signature of Principal Executive
Officer or Authorized Agent

DATE:

Month

Day

Year

COMMENT AND EXPLANATION OF ANY VIOLATIONS (Reference all attachments here)